

CV-26-003882 PADILLA, JOHN PAUL vs DOCTORS MEDICAL CENTER OF MODESTO INC – Plaintiff’s Motion for Preliminary Injunction – GRANTED.

County: Stanislaus

Division: Civil Law and Motion

Department: 22

Hearing date: 2012-04-02

Motion: For the reasons set forth below, the motion for preliminary injunction is GRANTED. Defendant Doctors Medical Center of Modesto, Inc. is enjoined from participating in the American Arbitration Association (“AAA”) arbitration between the parties (i.e., AAA Case No. 012600037344). Defendant shall notify AAA within one court day that, pursuant to this Court’s order, Defendant seeks a stay of the arbitration. Plaintiff shall post an undertaking in the amount of \$500 and submit a proposed order within one day that conforms with this ruling. (CRC 3.1150(f).) On July 17, 2026, Plaintiff filed a motion for preliminary injunction seeking to enjoin Defendant from participating in the AAA arbitration that Defendant initiated on June 9, 2026. On July 24, 2026, Defendant opposed. The Court does not consider Plaintiff’s reply, as it is unauthorized. California Code of Civil Procedure section 526 allows a preliminary injunction to issue in the following cases: “(1) When it appears by the complaint that the plaintiff is entitled to the relief demanded, and the relief, or any part thereof, consists in restraining the commission or continuance of the act complained of, either for a limited period or perpetually. (2) When it appears by the complaint or affidavits that the commission or continuance of some act during the litigation would produce waste, or great or irreparable injury, to a party to the action. (3) When it appears, during the litigation, that a party to the action is doing, or threatens, or is about to do, or is procuring or suffering to be done, some act in violation of the rights of another party to the action respecting the subject of the action, and tending to render the judgment ineffectual. (4) When pecuniary compensation would not afford adequate relief. (5) Where it would be extremely difficult to ascertain the amount of compensation which would afford adequate relief. (6) Where the restraint is necessary to prevent a multiplicity of judicial proceedings. (7) Where the obligation arises from a trust.” (Code Civ. Proc., § 526.) Trial courts consider two factors when determining whether to issue a preliminary injunction. The first factor “is the likelihood that the plaintiff will prevail on the merits[.]” (Salazar v. Majestic Realty Co. (2025) 116 Cal.App.5th 813, 825, reh’g denied (Dec. 23, 2025), review denied (Feb. 25, 2026)). The second factor “is the interim harm that the plaintiff is likely to sustain if the injunction were denied as compared to the harm that the defendant is likely to suffer if the preliminary injunction were issued.” (Ibid.) The greater the plaintiff’s showing on one factor, the less must be shown on the other factor. (Butt v. State of California (1992) 4 Cal.4th 668, 678.) “A preliminary injunction is an interim remedy designed to maintain the status quo pending a decision on the merits.” (MaJor v. Miraverde Homeowners Assn. (1992) 7 Cal.App.4th 618, 623.) First, plaintiff has shown a possibility that it will prevail on the merits of the motion to compel arbitration. Plaintiff argues that the arbitration agreement is unenforceable because it is both procedurally and substantially unconscionable because it was essentially a contract of adhesion, because it requires the arbitration to be confidential, and because it requires employees to waive their right to bring a representative PAGA action. After considering Defendant’s arguments in opposition, the Court finds “there is some possibility that the plaintiff will ultimately prevail on the merits of the claim.” (Butt, supra, 4 Cal.4th at 678.) Second, the balance of harms favors Plaintiff. It does not appear that Defendant initiated the arbitration in good faith. Defendant managed to initiate an arbitration as the Respondent by submitting an arbitration demand on behalf of Plaintiff as the Claimant. Typically, Respondents do not initiate arbitration, they respond to them. Defendant states that AAA Rule 4 allows either party to initiate arbitration “in the absence of a joint request for arbitration.” (Opposition at 18.) The Court was unable to locate such language in the AAA rules. Rather Rule 4 states that arbitration is initiated “by the initiating party” who is “referred to as the ‘claimant[.]’ ” (July 22, 2026 Amended Decl. of Jaclyn Joyce, Ex. 2 at p. 8.) In addition, the arbitration agreement at issue states that “an employee may initiate the arbitration process[.]” (Id., Ex. 1 at p. 2.) Neither document states that a Respondent may initiate an arbitration against itself on behalf of another party. Defendant’s argument that the arbitration agreement may be unilaterally commenced by either party without the need for a court order likewise appears misplaced. None of the cases which Defendant cites stand for the proposition that a respondent may initiate an arbitration against itself on behalf of the claimant. Rather, those cases merely demonstrate that a claimant may submit an arbitration demand a=without a court order. Forcing Plaintiff to participate in arbitration proceedings that were improperly initiated harms Plaintiff and produces waste by forcing Plaintiff to devote resources on two fronts unnecessarily. Meanwhile, Defendant will suffer no harm in waiting for the Court’s order on its own motion to compel arbitration. That Defendant filed a motion to compel arbitration in the instant case indicates that Defendant is aware of the proper procedure yet chose to circumvent established rules and procedures in an attempt to gain the upper hand. The Court notes that in the context of duplicative cases pending in other jurisdictions, California courts have the power to issue orders that prohibit a party from taking action in other actions that interfere with the trial court’s proceedings. (Advanced Bionics Corp. v. Medtronic, Inc. (2002) 29 Cal.4th 697, 713, as modified (Mar. 5, 2003) [“Courts . . . consider vexatiousness or oppressiveness in a race to judgment in the foreign forum as sufficient grounds to issue an antisuit injunction.”].) Although an arbitration is not a judicial proceeding, the logic is applicable to matter at hand. Defendant’s acts of improperly initiating arbitration interfere with the trial court’s proceedings.

Source URL: <https://www.stanislaus.courts.ca.gov/online-services/tentative-rulings/civil-tentative-rulings>

Source SHA-256: 71535c06b6134dee8bc0c327e8f7fc46f9d9027da7a2b987deab8e98170ca35d

CV-26-003882 - PADILLA, JOHN PAUL vs DOCTORS MEDICAL CENTER OF MODESTO INC – Plaintiff's Motion for Preliminary Injunction – GRANTED.

For the reasons set forth below, the motion for preliminary injunction is GRANTED. Defendant Doctors Medical Center of Modesto, Inc. is enjoined from participating in the American Arbitration Association ("AAA") arbitration between the parties (i.e., AAA Case No. 012600037344). Defendant shall notify AAA within one court day that, pursuant to this Court's order, Defendant seeks a stay of the arbitration. Plaintiff shall post an undertaking in the amount of \$500 and submit a proposed order within one day that conforms with this ruling. (CRC 3.1150(f).)

On July 17, 2026, Plaintiff filed a motion for preliminary injunction seeking to enjoin Defendant from participating in the AAA arbitration that Defendant initiated on June 9, 2026. On July 24, 2026, Defendant opposed. The Court does not consider Plaintiff's reply, as it is unauthorized.

California Code of Civil Procedure section 526 allows a preliminary injunction to issue in the following cases:

"(1) When it appears by the complaint that the plaintiff is entitled to the relief demanded, and the relief, or any part thereof, consists in restraining the commission or continuance of the act complained of, either for a limited period or perpetually.

(2) When it appears by the complaint or affidavits that the commission or continuance of some act during the litigation would produce waste, or great or irreparable injury, to a party to the action.

(3) When it appears, during the litigation, that a party to the action is doing, or threatens, or is about to do, or is procuring or suffering to be done, some act in violation of the rights of another party to the action respecting the subject of the action, and tending to render the judgment ineffectual.

(4) When pecuniary compensation would not afford adequate relief.

(5) Where it would be extremely difficult to ascertain the amount of compensation which would afford adequate relief.

(6) Where the restraint is necessary to prevent a multiplicity of judicial proceedings.

(7) Where the obligation arises from a trust."

(Code Civ. Proc., § 526.) Trial courts consider two factors when determining whether to issue a preliminary injunction. The first factor "is the likelihood that the plaintiff will prevail on the merits[.]" (Salazar v. Majestic Realty Co. (2025) 116 Cal.App.5th 813, 825, reh'g denied (Dec. 23, 2025), review denied (Feb. 25, 2026)). The second factor "is the interim harm that the plaintiff is likely to sustain if the injunction were denied as compared to the harm that the defendant is likely to suffer if the preliminary injunction were issued." (Ibid.) The greater the plaintiff's showing on one factor, the less must be shown on the other factor. (Butt v. State of California (1992) 4 Cal.4th 668, 678.) "A preliminary injunction is an interim remedy designed to maintain the status quo pending a decision on the merits." (MaJor v. Miraverde Homeowners Assn. (1992) 7 Cal.App.4th 618, 623.)

First, plaintiff has shown a possibility that it will prevail on the merits of the motion to compel arbitration. Plaintiff argues that the arbitration agreement is unenforceable because it is both procedurally and substantially unconscionable because it was

essentially a contract of adhesion, because it requires the arbitration to be confidential, and because it requires employees to waive their right to bring a representative PAGA action. After considering Defendant's arguments in opposition, the Court finds "there is some possibility that the plaintiff will ultimately prevail on the merits of the claim." (Butt, supra, 4 Cal.4th at 678.)

Second, the balance of harms favors Plaintiff. It does not appear that Defendant initiated the arbitration in good faith. Defendant managed to initiate an arbitration as the Respondent by submitting an arbitration demand on behalf of Plaintiff as the Claimant. Typically, Respondents do not initiate arbitration, they respond to them. Defendant states that AAA Rule 4 allows either party to initiate arbitration "in the absence of a joint request for arbitration." (Opposition at 18.) The Court was unable to locate such language in the AAA rules. Rather Rule 4 states that arbitration is initiated "by the initiating party" who is "referred to as the 'claimant[.]'" (July 22, 2026 Amended Decl. of Jaclyn Joyce, Ex. 2 at p. 8.) In addition, the arbitration agreement at issue states that "an employee may initiate the arbitration process[.]" (Id., Ex. 1 at p. 2.) Neither document states that a Respondent may initiate an arbitration against itself on behalf of another party. Defendant's argument that the arbitration agreement may be unilaterally commenced by either party without the need for a court order likewise appears misplaced. None of the cases which Defendant cites stand for the proposition that a respondent may initiate an arbitration against itself on behalf of the claimant. Rather, those cases merely demonstrate that a claimant may submit an arbitration demand a=without a court order.

Forcing Plaintiff to participate in arbitration proceedings that were improperly initiated harms Plaintiff and produces waste by forcing Plaintiff to devote resources on two fronts unnecessarily. Meanwhile, Defendant will suffer no harm in waiting for the Court's order on its own motion to compel arbitration. That Defendant filed a motion to compel arbitration in the instant case indicates that Defendant is aware of the proper procedure yet chose to circumvent established rules and procedures in an attempt to gain the upper hand. The Court notes that in the context of duplicative cases pending in other jurisdictions, California courts have the power to issue orders that prohibit a party from taking action in other actions that interfere with the trial court's proceedings. (Advanced Bionics Corp. v. Medtronic, Inc. (2002) 29 Cal.4th 697, 713, as modified (Mar. 5, 2003) ["Courts . . . consider vexatiousness or oppressiveness in a race to judgment in the foreign forum as sufficient grounds to issue an antisuit injunction."].) Although an arbitration is not a judicial proceeding, the logic is applicable to matter at hand. Defendant's acts of improperly initiating arbitration interfere with the trial court's proceedings.